

EMPLOYMENT AGREEMENT

entered into at Dallas, State of Texas, as of the

1. Dispute Resolution

1.1 Employee Conflict Resolution:

In the event of a workplace dispute or conflict between employees, the Company will make reasonable efforts to resolve the matter internally through informal discussion or formal mediation.

1.2 Binding Resolution Process:

If necessary, the parties agree to engage in good-faith efforts to resolve disputes through a structured internal process. The Company reserves the right to involve third-party mediators or HR professionals. Nothing in this clause limits either party's right to seek legal remedies under Texas law.

2. Probationary Period

2.1 Initial Employment Period (Probation):

The first **ninety (90) calendar days** of employment shall constitute a probationary period. During this period, either the Employee or the Company may terminate the employment relationship **at any time and for any lawful reason**, with or without notice.

2.2 Review:

At the Company's discretion, a performance review may be conducted at the end of the probationary period. Continuation of employment beyond this period does not alter the at-will nature of the employment.

3. Work Schedule and Hours

3.1 Schedule Disclosure:

The Company does not guarantee any specific number of work hours per week. Employment may include part-time or variable schedules based on business needs, which may range from **twenty-four (24) to forty (40) hours per week**, unless otherwise specified in writing.

3.2 No Full-Time Assumption:

The Employee acknowledges that no verbal or implied guarantees have been made regarding full-time status or consistent weekly hours.

4. Attendance and Tardiness Policy

4.1 Attendance Expectations:

Employees are expected to arrive on time for all scheduled shifts. Repeated unexcused tardiness or absenteeism disrupts operations and may result in disciplinary action.

4.2 Termination for Repeated Violations:

If an employee:

- Is late to a shift **three (3) times**, or
- Misses **three (3) scheduled shifts** without valid excuse and prior notice, the Company reserves the right to terminate employment with written notice.

BY AND BETWEEN :

HBK RETAIL 2 INC a legal corporation incorporated under the laws of the State of Texas, with the following registered addresses at 11616 Harry Hines Blvd suite 100, Dallas, Tx 75229, represented herein by Mehboob Khoja, its President, duly authorized hereto as he so declares (hereinafter referred to as the "**Corporation**")

AND

NIHAL BIJU,

a person domiciled in the State of Texas and residing at

11900 Commerce St, Farmers Branch, TX 75234 Apt 3212

(hereinafter referred to as the "**Employee**")

WHEREAS the Corporation wishes to engage the services of the Employee and the Employee wishes to offer his or her services to the Corporation; and

WHEREAS the parties desire to enter into this Agreement setting forth the terms and conditions of the employment of the Employee with the Corporation and the benefits attaching thereto;

NOW, THEREFORE, THE PARTIES AGREE AS FOLLOWS: in consideration of the mutual covenants herein contained, the parties agree as follows:

1. INTERPRETATION

1.1 **Definitions.** Where used herein or in any amendments hereto or in any communication required or permitted to be given hereunder, the following words and phrases shall have the following meanings, respectively, unless the context otherwise requires:

(a) "**Agreement**" shall mean this Employment Agreement and all instruments supplemental

hereto or in amendment or confirmation hereof; "**herein**", "**hereof**", "**hereto**", "**hereunder**" and similar expressions mean and refer to this Agreement and not to any particular Article, Section, Subsection or other subdivision; "**Article**", "**Section**", "**Subsection**" or other subdivision of this Agreement means and refers to the specified Article, Section, Subsection or other subdivision of this Agreement.

- (b) "**Base Salary**" shall have the meaning ascribed to it in Article 4.
- (c) "**Business**" shall mean (i) the business presently conducted by the Corporation, including the retail sale of convenience items and alternative products, including but not limited to tobacco, nicotine, hemp (with compliance of state and federal laws), and related accessories (ii) any other business conducted by the Corporation after the date of this Agreement up to the termination of the Employee's employment; and (iii) any business that

the Corporation is in the process of developing at the time of the termination of the Employee's employment.

- (d) **"Cause"** shall mean the occurrence of any one of the following acts or events by or relating to the Employee:
- i. habitual inability to carry out functions of employment;
 - ii. theft, fraud or embezzlement from the Corporation or any other material act of dishonesty relating to the Employee's employment; or conviction of a crime (other than traffic violations and minor misdemeanors) relating to the Employee's employment or which could cause harm or damage to the Corporation's public image, reputation or relations with the authorities;
 - iii. any material breach of this Agreement not cured within ten (10) days after written notice thereof (provided however that no notice shall be given in the event of a breach, by the Employee, of any of the restrictive covenants which are set forth in Article 7, Article 8, and Article 9);
 - iv. any failure by the Employee to follow the reasonable and lawful directions of the Corporation;
 - v. behavior of the Employee causing harm or damage to the Corporation's public image or relations with the authorities; or
 - vi. any act or omission of the Employee which, pursuant to applicable law, constitutes a serious reason for termination of employment without notice, payment in lieu of notice or any indemnity whatsoever.
- (e) **"Confidential Information"** shall mean all information in whatever form (oral, written, machine readable or otherwise) pertaining to the Corporation and its Business, which information may include but shall not be limited to: the terms of the Employee's employment, salaries and bonuses received; customer lists and customer information; supplier lists and supplier information; distributor lists and distributor information; pricing and tender strategies; marketing, promotional and advertising studies, business strategies/tactics, programs and strategies; employee personal information, including their contact information; financial statements and financial information; tax returns and other fiscal information; business plans; scientific studies and analysis, research and development projects and clinical and other test data; existing and new or envisioned products, formulas, devices and production methods, processes and techniques; product specifications and methods of doing business; third party confidences; litigation strategies; contract negotiation strategies; public relations strategies; legal and other professional advice; intellectual property, security information and systems; computer technology, source codes, programs and controls; all data, documents, work products or information contained, displayed or visible at any time during the Employee's employment; Intellectual Property Rights; information which gives the Corporation or any of its customers or suppliers an opportunity to obtain a competitive advantage; any information which if disclosed to competitors of the Corporation could reasonably be expected to give them a competitive advantage; all documents or records marked confidential or proprietary or which is disclosed to the Employee upon notification that it is confidential; and all summaries, analyses, compilations, studies or other documents which contain, are derived from or otherwise reflect the foregoing; provided however, that the phrase **"Confidential Information"** shall not include information that:

- i. is or becomes public other than through a breach of the Employment Agreement or this Agreement by the Employee;
 - ii. is communicated to the Employee by a third party that is not under an obligation to maintain the confidentiality of the Confidential Information;
 - iii. is known to the Employee prior to the employment relationship and with respect to which the Employee does not have any obligation of confidentiality; or
 - iv. is legally compelled or required to be disclosed by the Employee (in which case the Employee shall promptly inform the Corporation of such so that the Corporation has sufficient time to take lawful steps to avoid or limit disclosure of the Confidential Information);
- (f) **"Customer"** shall mean any Person who, during the Employee's employment, or in the case of termination of employment, in the Twenty-Four (24) months preceding the date of termination for any reason, has, to the Employee's knowledge, purchased, leased or licensed from the Corporation, any product or services produced, sold, licensed, or distributed by the Corporation in respect of the Business;
- (g) **"Good Reason"** shall mean the occurrence of any one of the following acts or events without the prior written consent of the Employee:
 - i. the significant diminishment of the Employee's authority or responsibility or the assignment to the Employee of duties inconsistent with the Employee's position, span of control, responsibilities or status within the Corporation;
 - ii. a reduction in the Employee's Base Salary as in effect on the date hereof or as same may be increased from time to time;
 - iii. a material breach by the Corporation of this Agreement which is not remedied after ten (10) days written notice thereof.
- (h) **"Incapacity"** shall mean any medical condition whatsoever (including physical or mental illness) which leads to the Employee's absence from his job function for a continuous period of six (6) months without the Employee being able to resume functions on a full time basis at the expiration of such period and which, in light of the position held by the Employee, the parties agree would cause undue hardship to the Corporation which cannot be accommodated; and unsuccessful attempts to return to work for periods of less than fifteen (15) days shall not interrupt the calculation of such six (6) month period;
- (i) **"Intellectual Property Rights"** shall mean all registered and unregistered intellectual property rights including, without limiting the generality of the foregoing:
 - i. rights to any inventions, whether patentable or not patentable, patents, trademarks, trade names, copyright, designs, industrial designs, trade secrets, integrated circuit and topographies; and
 - ii. all domestic and foreign registrations, applications, divisionals, continuations, continuations-in-part, re-examinations and renewals thereof;

- (j) **"Person"** shall mean an individual, corporation, company, cooperative, partnership, trust, unincorporated association, entity with juridical personality or governmental authority or body; and pronouns which refer to a Person shall have a similarly extended meaning;
- (k) **"Prospective Customer"** shall mean (i) any Person solicited by the Employee on behalf of the Corporation for any purpose relating to the Business at any time during the Employee's employment, and in the case of termination, within the Twenty-Four (24) month period immediately preceding the date of termination for any reason; and (ii) any Person solicited by the Corporation with the Employee's knowledge for any purpose relating to the Business at any time during the Employee's employment, and in the case of termination, within the Twenty-Four (24) month period immediately preceding the date of the termination for any reason
- (l) **"Supplier"** shall mean any Person who, during the Employee's employment, or in the case of termination of employment, in the Twenty-Four (24) months preceding the date of termination for any reason, has, to the Employee's knowledge, sold to the Corporation, any products or services that are or may be used by the Corporation as an integral part of the Business;
- (m) **"Work Product"** shall mean all discoveries, inventions, improvements, innovations, processes, topographies, codes, software, know how, recipes, technology, formulas, drawings, specifications for products, materials and equipment, process development and ideas including all related documentation on whatever support it is, of which the Employee is solely or jointly, in whole or in part, an inventor, discoverer, author, creator, conceiver or originator; and
- (n) **"Territory"** means the State of Texas

- 1.2 **Preamble.** The preamble to the present Agreement shall form an integral part hereof as if recited at full length herein.

2. DUTIES

- 2.1 The Employee shall hold the position of Retail Store Manager of the Corporation.
- 2.2 The Employee's duties and responsibilities shall include, in addition to those inherent to the Employee's title, those compatible with the Employee's position and which may be delegated to the Employee, from time to time.
- 2.3 The Employee shall comply in all material respects with all applicable rules and policies of the Corporation made known to him in writing.
- 2.4 The Employee hereby represents and warrants that the Employee possesses suitable training, education, experience, skills and other qualifications necessary to perform the duties and responsibilities compatible with the Employee's position.

3. DURATION

- 3.1 This Agreement is hereby concluded for an indeterminate period of time, commencing 09 / 01 / 2025

4. SALARY

- 4.1 The Employee shall receive an hourly wage base salary of \$ U.S. dollars (USD\$), less applicable legal deductions and withholdings, to be paid in accordance with the Corporation's standard payroll practices (hereinafter, the "**Base Salary**"). This Base Salary will be subject to periodic review and adjustments at the Corporation's discretion.

5. BENEFITS AND VACATION

- 5.1 The Employee shall be entitled to such benefits as the Corporation provides, from time to time, to its employees of the same category and seniority as the Employee and shall be entitled to participate in such group insurance plans as may be established for such employees of the Corporation from time to time.
- 5.2 The Employee shall be entitled to paid vacation per calendar year to be taken at such times and intervals as shall be mutually agreed upon between the Employee and the Corporation in accordance with the laws of Texas and the laws of the United States of America applicable therein. The Employee shall also be entitled to any sick leave in accordance with the laws of Texas and the laws of the United States of America applicable therein.

6. LOYALTY

- 6.1 The Employee shall act with diligence, loyalty and honesty and shall make all necessary efforts to promote the Corporation's legitimate interests.
- 6.2 The Employee agrees to devote his full-time attention, skills and best efforts to the Business and affairs of the Corporation. For greater certainty but without limiting the generality of the foregoing, it is understood that the Employee shall not be employed with respect, or in relation, to any Person other than the Corporation.

7. CONFIDENTIALITY

- 7.1 Any document or work composed, created, assembled or produced by the Employee or the Corporation and containing Confidential Information (including, without limitation, all notes, extracts, text or references from which any Confidential Information can be implicitly or otherwise revealed or understood) shall be deemed to be Confidential Information within the meaning of this Agreement and shall be treated as such.
- 7.2 Confidential Information and all embodiments thereof (including any reproduction) shall remain the sole property of the Corporation and shall be returned to the Corporation immediately upon request to this effect or immediately after the termination of the Employee's employment.
- 7.3 The Employee agrees that the Employee shall not disclose the Confidential Information (either during the Employee's employment or at any time thereafter) to any persons other than in the ordinary course of their duties or business for the Corporation and shall not use the Confidential Information (either during their employment or at any time thereafter) for the Employee's own purposes, or any purposes other than those of the Corporation. The Employee further agrees that the Employee shall execute such further and other agreements concerning the secrecy of the affairs of the Corporation or any companies with which the Corporation is affiliated or associated, as the Corporation shall reasonably request. The Employee hereby agrees not to use, divulge, diffuse, sell, transfer, give, publish, circulate or otherwise distribute to any Person or otherwise make public, any Confidential Information.

- 7.4 The Employee shall take all reasonable efforts to minimize the risk of disclosure of the Confidential Information by ensuring that only authorized representatives of the Corporation whose duties require them to possess or use the Confidential Information will have access thereto, and shall take all reasonable precautions to safeguard and preserve the confidentiality of the Confidential Information.
- 7.5 Except when required in the performance of the Employee's duties, under no circumstances shall the Employee reproduce any Confidential Information without the prior written consent of the Corporation. All reproductions of Confidential Information shall be governed by this Agreement and shall be treated as Confidential Information hereunder.
- 7.6 All right, title and interest in and to the Confidential Information shall remain the exclusive property of the Corporation. No interest, license or other right respecting the Confidential Information is granted hereby to the Employee by the Corporation.
- 7.7 Nothing contained in this Article 7 shall be interpreted so as to prevent the Employee from carrying on his functions on behalf of the Corporation and in the Corporation's interest.

8. WORK PRODUCT

- 8.1 In consideration of the Base Salary that the Employee receives from the Corporation, all Work Product (including all data and records pertaining thereto) that the Employee may invent, discover, author, originate, create or conceive, whether individually or with others, during his employment with the Corporation and all Intellectual Property Rights relating thereto shall be the sole and exclusive property of the Corporation.
- 8.2 With respect to Work Product invented, discovered, authored, originated, created or conceived by him during his employment the Employee shall perform the following:
- (a) promptly disclose and describe such Work Product in writing to the Corporation;
 - (b) assign (and the Employee does hereby assign) to the Corporation or such Person designated by the Corporation, without further compensation (but at the Corporation's expense), upon request and in the manner prescribed by the Corporation, all his rights, title and interest in and to said Work Product and Intellectual Property Rights related thereto throughout the world and waive (and the Employee does hereby waive) any and all other rights that are non assignable, including but not limited to moral rights in all Work Product or any non-economic rights; and
 - (c) deliver promptly to the Corporation, upon request and in the form and manner prescribed by the Corporation (without charge to the Corporation but at the Corporation's expense), all written instruments and documentation relating to said Work Product and Intellectual Property Rights and do such acts as deemed necessary by the Corporation to obtain, maintain and to transfer all rights and title thereto to the Corporation;
- 8.3 The Employee agrees that all Work Product that he invents, discovers, authors, creates, conceives or originates, alone and with others, will be original and will not to his knowledge infringe or violate any Intellectual Property Rights or confidential information of any of its former employers or of any other third party and will not constitute a breach of any of the Employee's

contractual or legal obligations towards its former employers or any other third party.

9. OBLIGATION OF NON-COMPETITION

- 9.1 The Employee shall not, without the prior written consent of the Corporation, at any time during the Employee's employment and following the termination thereof, for a period of Twenty-Four (24) months, directly or indirectly, either individually or jointly or in partnership or in conjunction with any Person, as principal, agent, employee, consultant, shareholder, guarantor, creditor, partner, advisor, or in any other manner or capacity whatsoever, (i) carry on or be engaged in any undertaking or business in all or any part of the Territory which is competitive, in any way, with the Business; or (ii) have any financial interest in or be otherwise commercially involved in any undertaking or business in all or any part of the Territory which is competitive, in any way, with the Business

10. OBLIGATION OF NON-SOLICITATION

- 10.1 The Employee shall not, without the prior written consent of the Corporation, at any time during the Employee's employment and following the termination thereof, for a period of Twenty-Four (24) months, directly or indirectly, either individually or jointly or in partnership or in conjunction with any Person, as principal, agent, employee, consultant, shareholder, guarantor, creditor, partner, advisor, or in any other manner or capacity whatsoever:
- (a) canvas or solicit (or procure or assist the canvassing or soliciting of the business of) the business of any Customer, Prospective Customer or Supplier for any purpose which is competitive with the Business;
 - (b) accept the business of any Customer, Prospective Customer or Supplier for any purpose which is competitive with the Business in all or any part of the Territory;
 - (c) supply (or procure or assist the supply of) any goods or services to any Customer for any purpose which is competitive with the Business in all or any part of the Territory;
 - (d) attempt to persuade any Customer, Prospective Customer or Supplier to cease to do business or reduce the amount of business which any customer or supplier of the Corporation has customarily done with the Corporation;
 - (e) employ, offer employment to, retain the services of or solicit the employment or engagement of or otherwise entice away from the employment or engagement of the Corporation, any individual who, to the Employee's knowledge, is employed or engaged by the Corporation, whether or not such individual would commit any breach of his contract or terms of employment or engagement by leaving the employ or the engagement of the Corporation; or
 - (f) assist any Person to employ, offer employment to, retain the services of or solicit the employment or engagement of any individual who is employed or engaged by the Corporation with whom the Employee had contact in the course of the Employee's employment with the Corporation during the two (2) year period immediately before the Employee's employment terminated, or otherwise entice any such individual away from the employment or engagement of the Corporation.

- 10.2 For clarity, the placement by the Employee of advertising in a newspaper or other publication of general circulation, or the engagement of a personnel search agency by the Employee generally (i.e. not specifically in respect of the Corporation), that results in an employee or other individual

engaged by the Corporation leaving the employment of or engagement with the Corporation shall not be considered a violation of this Section 10.

11. ENFORCEMENT

- 11.1 The Employee hereby acknowledges that the restrictions contained in Article 7, Article 8, Article 9 and Article 10 of this Agreement, in view of the nature of the Business in which the Corporation is engaged are reasonable in scope and necessary for the protection of the legitimate interests of the Corporation and acknowledges that the said restrictive covenants are an essential condition of this Agreement without which the Corporation would have not been induced to enter same. The Employee also represents and warrants that the said restrictive covenants will not prevent him from earning his livelihood if he/she is no longer employed by the Corporation. In the event that a court of competent jurisdiction shall determine that any of the above covenants are too restrictive, the court shall reduce the scope to the maximum limits permitted by law.
- 11.2 It is expressly agreed by the parties hereto that the provisions of Article 7, Article 8, Article 9 and Article 10 shall survive the termination of the Employee's employment for any reason.

12. TERMINATION OF EMPLOYMENT

- 12.1 The Employee's employment may be terminated in any of the following eventualities:
- (a) At any time, by the Corporation, for Cause, upon written notice from the Corporation to the Employee;
 - (b) At any time, upon the death or the Incapacity of the Employee;
 - (c) At any time, by the Employee, upon fourteen (14) days written notice from the Employee to the Corporation, specifying the intention of the Employee to resign (except if Good Reason exists, in which event the Employee may terminate his employment at any time by written notice to the Corporation, subject to Section 1.1(g)iii; or
 - (d) At any time, by the Corporation, without Cause, upon written notice from the Corporation to the Employee.

13. OBLIGATIONS AFTER TERMINATION OF EMPLOYMENT

- 13.1 The Employee agrees that the Employee's obligations under this Agreement shall continue in effect after the termination of the Employee's employment in accordance with applicable law. In addition, the Corporation is entitled to transmit a notice to any future employer or potential employer of the Employee's denouncing any allegation of a breach by the Employee of any of the aforementioned sections.

14. MISCELLANEOUS

- 14.1 **Headings.** The headings in this Agreement are inserted for convenience of reference only and shall not affect the interpretation hereof.
- 14.2 **Entire Agreement.** All discussions, correspondence, understandings and agreements between the parties relating to the subject matter of this Agreement are superseded by and merged into this Agreement which alone (together with any stock option agreements entered into between the Corporation and the Employee and any other documents or agreements specifically referred to herein) fully and completely expresses the agreement between the parties on the terms of

Employee's employment by the Corporation, and the same is entered into with no party relying upon any statement or representation made by or on behalf of any party not embodied in this Agreement.

- 14.3 **Amendments.** No amendment shall be binding unless expressly provided in an instrument duly executed by the parties.
- 14.4 **Severability.** Any Article, Section, Subsection or other subdivision of this Agreement or any other provision of this Agreement which is, or becomes, illegal, invalid or unenforceable shall be severed here from and shall be ineffective to the extent of such illegality, invalidity or unenforceability and shall not affect or impair the remaining provisions hereof, which provisions shall (a) be severed from any illegal, invalid or unenforceable Article, Section, Subsection or other subdivision of this Agreement or any other provision of this Agreement; and (b) otherwise remain in full force and effect.
- 14.5 **Waiver.** No waiver, whether by conduct or otherwise, of any of the provisions of this Agreement shall be deemed to constitute a waiver of any other provisions (whether or not similar) nor shall such waiver constitute a continuing waiver unless otherwise expressly provided in an instrument duly executed by the parties to be bound thereby.
- 14.6 **Assignment.** This Agreement and the Employee's rights and obligations hereunder may not be assigned by the Employee. The Corporation may assign its rights together with its obligations hereunder in all circumstances including in connection with any sale, transfer or other disposition of all or substantially all of its business and assets; and such rights and obligations shall inure to and be binding upon any successor to all or substantially all of the business and assets of the Corporation.
- 14.7 **Governing Law.** This Agreement shall be governed by and interpreted and construed in accordance with the laws of the State of Texas and the laws of the United States of America applicable therein.
- 14.8 **Jurisdiction.** Any legal action or proceeding with respect with this Agreement shall be brought exclusively in the courts of the State of Texas and, by execution and delivery of this Agreement, the Employee and the Corporation irrevocably consent to the jurisdiction of those courts.
- 14.9 **Independent Legal Advice.** The Employee acknowledges that he has been afforded an opportunity to obtain independent legal advice with respect to this Agreement and that he understands the nature and the consequences of this Agreement.

[Signature page follows]

IN WITNESS WHEREOF, this Agreement has been executed by the parties hereto on the date and at the place first above-mentioned

EMPLOYER:

PRINTED NAME:

SIGNATURE:

EMPLOYEE:

PRINTED NAME:

SIGNATURE:
